



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DEC 1 0 1992

DOT-E 10937

1. Occidental Chemical Corporation, Dallas, Texas, is hereby granted an emergency exemption from certain provisions of this Department's Hazardous Materials Regulations to offer a package prescribed herein of an ORM-C for transportation in commerce subject to the limitations and special requirements specified herein. This exemption authorizes the transportation of a DOT Specification 111A100W1 tank car, containing molten sulfur, with a patched hole in the center top of the tank, and provides no relief from any regulations other than as specifically stated.
2. BASIS. This emergency exemption is based on Occidental Chemical Corporation's application of December 11, 1992, submitted in accordance with 49 CFR 107.113, and a determination that is necessary for the protection of life and property.
3. HAZARDOUS MATERIALS (Descriptor and class). Molten sulfur, classed as an other regulated material.
4. PROPER SHIPPING NAME (49 CFR 172.101). Molten Sulfur.
5. REGULATION AFFECTED. 49 CFR 173.31(b).
6. MODES OF TRANSPORTATION AUTHORIZED. Rail freight.
7. SAFETY CONTROL MEASURES. Packaging prescribed is a DOT Specification 111A100W1 tank car, GATX 90545, meeting all DOT requirements (49 CFR Parts 100-299), except that the tank car has a hole, which has been patched, in the center top of the tank car.
8. SPECIAL PROVISIONS.
 - a. Tank car GATX 90545 must be marked DOT-E 10937 in four inch letters on a contrasting background above the DOT Specification number.
 - b. Shipment of the tank cars is authorized between Shell Refining & Marketing, Wood River, Illinois, and Occidental Chemical Corporation, White Springs, Florida, a distance of approximately 850 miles, via the most direct route available utilizing Norfolk Southern Corporation and CSX Transportation, Incorporated.

c. Occidental Chemical must furnish a report, no later than 60 days after repairs have been completed, to the Associate Administrator for Safety, Federal Railroad Administration. This report shall include a summary of repairs effected, causal factors determined by Occidental Chemical Corporation and any other information relevant to this tank car.

d. The Federal Railroad Administration is to be notified if any unusual incident occurs during the movement by contacting the:

Federal Railroad Administration
Office of Safety, RRS-12
400 Seventh Street, S.W.
Washington, D.C. 20590
(202) 366-9178 or 366-0549

9. REPORTING REQUIREMENTS. Any incident involving loss of packaging contents or packaging failure must be reported to the Associate Administrator for Hazardous Materials Safety as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.)

10. EXPIRATION DATE. January 15, 1993.

Issued at Washington, D.C.:



Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

DEC 18 1992

(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: Exemptions Program.

Dist: FRA.